

TENTATIVE RULING

Case: **Burnam-Bruce v. AWTs, LLC**
Case No. CV2025-2677

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

Defendant AWTs, LLC's petition to enforce class action waiver and compel arbitration and dismissal is **DENIED WITHOUT PREJUDICE**. (9 U.S.C. § 2; Code Civ. Proc, §§ 1281, et seq., 1290, et seq.) The Court finds that defendant fails to show a valid agreement to arbitrate exists. (Code Civ. Proc., § 1281 et seq.; *McAllister Bros., Inc. v. A & S Trans. Corp.* (1980) 621 F.2d 519, 524 [in order to determine whether a valid arbitration agreement exists under the FAA, courts must turn to state contract law]; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 381 ["The party seeking arbitration bears the initial burden of demonstrating the existence of an arbitration agreement."].) Defendant fails to establish by a preponderance of the evidence that plaintiff's electronic signature on the purported agreement to arbitrate was authentic. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1057 – 1058, 1060, 1061 [once a plaintiff challenge the validity of that signature in plaintiff's opposition, a defendant is then required to establish by a preponderance of the evidence that the signature was authentic]; *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 757 [an individual's inability to recall signing electronically may reasonably be regarded as evidence that the person did not do so]; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; Burnham-Bruce Decl., ¶¶ 3 – 10; Edmunds Decl., generally and ¶¶ 8, 10, Exhibits A, B.) The purported agreement to arbitrate, a document entitled "Mutual Agreement to Arbitrate Employment-Related Disputes" is not identified as a document provided to plaintiff as part of her onboarding process. (Edmunds Decl., ¶¶ 4 – 8, Exhibits A, B.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Burnam-Bruce v. AWTS, LLC**
Case No. CV2025-3059

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

Defendant AWTS, LLC's petition to compel arbitration and request stay of proceedings is **DENIED WITHOUT PREJUDICE**. (9 U.S.C. § 1, et seq., 1281, et seq., 1290, et seq.) The Court finds that defendant fails to lay the foundation to show a valid agreement to arbitrate exists. (Code Civ. Proc., § 1281 et seq.; *McAllister Bros., Inc. v. A & S Trans. Corp.* (1980) 621 F.2d 519, 524 [in order to determine whether a valid arbitration agreement exists under the FAA, courts must turn to state contract law]; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 381 ["The party seeking arbitration bears the initial burden of demonstrating the existence of an arbitration agreement."].) Defendant fails to establish by a preponderance of the evidence that plaintiff's electronic signature on the purported agreement to arbitrate was authentic. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1057 – 1058, 1060, 1061 [once a plaintiff challenge the validity of that signature in plaintiff's opposition, a defendant is then required to establish by a preponderance of the evidence that the signature was authentic]; *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 757 [an individual's inability to recall signing electronically may reasonably be regarded as evidence that the person did not do so]; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; Burnham-Bruce Decl., ¶¶ 3 – 10; Edmunds Decl., generally and ¶¶ 8, 10, Exhibits A, B [attached as Exhibit 1 to Patel Decl.].) The purported agreement to arbitrate, a document entitled "Mutual Agreement to Arbitrate Employment-Related Disputes" is not identified as a document provided to plaintiff as part of her onboarding process. (Edmunds Decl., ¶¶ 4 – 8, Exhibits A, B [attached as Exhibit 1 to Patel Decl.].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.